

24LBCV01911 24LBCV01911

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-07-02

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS28%2C07%2F02%2F2026

Source SHA-256: d280480fd88041163bd7ceeea574126613fc2486b56191e750f75915c894c84a

Case Number: 24LBCV01911 Hearing Date: July 2, 2026 Dept: S28

Applicable Law

California Code of Civil Procedure section 877.6, subdivision (a)(1), provides, in relevant part, that, on noticed motion, "[a]ny party to an action wherein it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff. . . and one or more alleged tortfeasors or co-obligors. . ." "A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (Code Civ. Proc., § 877.6, subd. (c).) Although a determination that a settlement was in good faith does not discharge any other party from liability, "it shall reduce the claims against the others in the amount stipulated" by the settlement. (Code Civ. Proc., § 877, subd. (a).)

"Good faith" does not have a precise definition, but may be determined by taking into account a number of factors, including "a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants." (Tech-Bilt, Inc. v. Woodward-Clyde & Assocs. (1985) 38 Cal.3d 488, 499.) Another key factor is the settling tortfeasor's potential liability for indemnity to joint tortfeasors. (Far West Fin'l Corp. v. D & S Co. (1988) 46 Cal.3d 796, 816, fn. 16.)

"The party asserting the lack of good faith shall have the burden of proof on that issue." (Code Civ. Proc., § 877.6, subd. (d).)

Analysis

Defendants move for an order determining that a settlement between the Attwater Defendants and Plaintiff was made in good faith. The parties entered into a Settlement Agreement whereby Plaintiff agreed to release all liability and dismiss with prejudice the Moving Defendants in exchange for a settlement payment in the amount of \$20,000. (Teclezghi Deel., paragraph 12.)

On January 13, 2026, counsel for Moving Defendants emailed all of the other parties' counsel to ascertain if they were willing to stipulate to good faith settlement with respect to Moving Defendants. (Teclezghi Deel., paragraph 12; Exhibit H.). As of the time of filing of this Motion, Defendants' counsel declares that no one has provided a substantive response to the January 13, 2026, email. (Ibid.)

Settling Defendants also contend that the settlement amount is reasonable and within the parameters as defined in Tech-Bilt, supra, 38 Cal.App.3d 488.

Here, the Court finds Settling Defendant's motion well taken. The Court construes the lack of opposition from the other parties to this action as a tacit admission that Defendants' motion is meritorious. (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410; see also Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215 ["Contentions are waived when a party fails to support them with reasoned argument and citations to authority. [Citation.]"]) The Court also notes the lack of opposition because there is no argument or evidence from any of the parties here that this settlement was made in bad faith, and the party asserting bad faith bears the burden of proof. (Tech-Bilt, supra, 38 Cal.3d at pp. 499-500.) Additionally, there is no indication that this settlement was the result of collusion, fraud, or tortious conduct aimed at the non-settling defendants.¿ While it is unclear whether the settlement is to be paid in one payment or over time, or whether each party shall bear their own attorney's fees and costs, that is not fatal to this Motion.¿ Moreover, the Court finds \$20,000 to be fair and reasonable.

CONCLUSION

Defendants' Motion for Order Approving Good Faith Settlement is GRANTED.

Moving party to give notice.